

GAME PUBLISHING AND DISTRIBUTION AGREEMENT

This Game Publishing and Distribution Agreement (the “**Agreement**”) constitutes a public offer made by MEDIACUBE WORLDWIDE LTD, a company incorporated under the laws of the Republic of Cyprus, Registration No. HE 401840, having its registered office at Makariou III, 134, ground floor, 3021, Limassol, Cyprus (the “**Publisher**”), to any legal entity or individual entrepreneur (the “**Licensor**”) willing to enter into this Agreement under the terms set forth herein.

1. ACCEPTANCE OF THE OFFER AND FORMATION OF THE AGREEMENT

1.1. This Agreement is deemed concluded and becomes legally binding upon the Licensor from the moment the Licensor accepts this public offer, which occurs by any of the following actions:

- registering an account on the Publisher’s platform;
- clicking an “Accept”, “I Agree”, “Publish”, or similar button;
- uploading, submitting, or publishing any Game through the Publisher’s platform;
- using the Publisher’s services in any manner.

1.2. Acceptance of this public offer constitutes the Licensor’s full and unconditional agreement with all terms of this Agreement without any reservations or exceptions.

1.3. The Agreement is concluded electronically and does not require handwritten signatures. The Publisher may maintain electronic records of the Licensor’s acceptance of this Agreement, including account identifiers, timestamps, IP addresses, clickstream records, logs and other electronic data. Such records shall constitute prima facie evidence of the Licensor’s acceptance of this Agreement.

1.4. By accepting this Agreement, the Licensor represents and warrants that:

(a) the Licensor is of legal age or otherwise has full legal capacity and authority to enter into binding agreements and to assume obligations and liabilities hereunder in accordance with the laws of its country of residence or incorporation;

(b) the Licensor has read, understood, and fully and unconditionally accepts this Agreement and all of its terms and conditions without any reservations;

(c) where this Agreement is accepted on behalf of a legal entity, the individual accepting this Agreement represents and warrants that he or she has full power, authority and authorization to bind such legal entity to this Agreement, and that such acceptance constitutes a valid and binding obligation of the Licensor. Any lack of authority of the individual accepting this Agreement shall not affect the validity of this Agreement and shall be the sole responsibility of the Licensor.

2. DEFINITIONS

For the purposes of this Agreement, in addition to capitalized terms defined elsewhere in this Agreement, the following defined terms shall have the meanings set forth below:

Affiliate: means a legal entity that (a) owns and controls a Party, directly or indirectly, or (b) is owned and controlled, directly or indirectly, by a Party, or (c) is directly or indirectly under common ownership and control with a Party.

Confidential information: means any non-public information disclosed by one Party to the other Party, whether disclosed orally, in writing, electronically, or otherwise, that is confidential in nature or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

Effective Date: means the date on which the Licensor first accepts this Agreement in accordance with Section 1.1 of this Agreement.

Game(s): means any gaming software owned by, controlled by, developed by, or duly licensed to the Licensor, including all text, graphic, audio and video materials integrated therein, which is intentionally submitted, uploaded, published, delivered, or otherwise made available by the Licensor to the Publisher, whether through the Publisher’s Platform or by any other means, whether directly by the Licensor or by any employee, contractor, agent, or other person acting on the Licensor’s behalf.

MC Pay: means a mobile app and/or service located at <https://mcpay.io/>

The Licensor acknowledges and agrees that use of MC Pay is governed by separate terms and conditions, policies and procedures applicable to MC Pay, as amended from time to time. The Licensor shall comply with such terms and conditions when using MC Pay.

Net Revenue: means the amount actually received by the Publisher from the Sublicensed Platform in connection with the Game(s).

For the avoidance of doubt, Net Revenue shall include only amounts actually received by the Publisher from the Sublicensed Platform, and no payment obligation shall arise with respect to amounts accrued, reported, estimated, recognized, or otherwise reflected in the Sublicensed Platform reports but not actually paid to the Publisher.

Parties: means the Licensor and the Publisher, each of them referred to individually as a “**Party**”.

Personal Data: means any information relating to an identified or identifiable natural person, as such term is defined under the General Data Protection Regulation (Regulation (EU) 2016/679) and any other applicable data protection or privacy laws, regulations, regulatory requirements, guidance and codes of practice.

Sublicensed Platform: means YouTube, namely a pilot program to test an experimental feature that allows Users to play games on YouTube (“Program”).

You: means the Licensor.

User: means a physical person end-user browsing to the Games on the Sublicensed Platform.

Reference to the singular includes the plural and vice versa (unless the context otherwise requires).

3. LICENSE, OWNERSHIP AND USE OF THE GAMES

3.1. License

Games:

By accepting this Agreement, the Licensor grants the Publisher a non-exclusive, worldwide, sublicensable right to publish, distribute, market, and otherwise make the Games available to the public (Users) on the Sublicensed Platform, and to allow Users to interact with the functionality of the Games, subject to delivery and acceptance of each Game by the Publisher pursuant to this Agreement.

Game Covers:

The Licensor further grants to the Publisher a non-exclusive, worldwide, sublicensable, royalty-free, fully paid-up right to use, publicly display, perform, reproduce, and distribute the Licensor’s trademarks, including logos and game covers used for the Games, on the Sublicensed Platform, solely for the purpose of making the Games available to Users and subject to delivery and acceptance of each Game.

Updates, Versions and Modifications:

Any updates, upgrades, patches, bug fixes, modifications, new versions, localized versions, or derivative versions of a Game submitted by or on behalf of the Licensor shall be deemed part of the same licensed Game and shall be subject to this Agreement, unless expressly agreed otherwise in writing by the Publisher.

3.2. Ownership and Attribution

All rights granted by the Licensor are subject to the Publisher’s full compliance with this Agreement. This Agreement does not transfer any ownership rights in and to the Games and the Licensor reserves all rights not expressly granted.

The Publisher shall display the Licensor’s name or credits in relation to the Game on the Sublicensed Platform (as instructed by the Licensor).

3.3. Conditions

The Licensor:

- Shall be allowed to promote the Game(s) using its own branding.
- Shall be allowed to make the Game(s) available or license/sublicense them to other persons or entities apart from the Publisher, in accordance with the terms of this Agreement.

3.4. Removal of Games Due to Platform Requirements

The Publisher shall have the right, at any time and in its sole discretion, to suspend, restrict, disable, or remove any Game from the Sublicensed Platform, in whole or in part, or to cease making any Game available to Users, without liability to the Licensor.

Such actions shall not affect the validity or subsistence of the license granted by the Licensor to the Publisher for the applicable Game License Term.

Removal or suspension of a Game from the Sublicensed Platform shall not constitute termination of the license granted under this Agreement unless expressly stated by the Publisher in writing or unless the applicable Game License Term expires or is terminated pursuant to Article 8.

4. OBLIGATIONS OF THE PARTIES

4.1. Delivery of the Game(s)

The Licensor shall provide the Publisher with a full copy of the Game(s) in a format suitable for publishing on a Sublicensed Platform. Unless otherwise agreed by the Parties the Publisher will carry out the actual process of submitting the Game to the Sublicensed Platform under its own user account or under an account created by it and shall have full control over the Game(s) on the Sublicensed Platform once submitted, but the Licensor will be responsible for ensuring that the Game(s) on an ongoing basis: (i) are ready in a timely manner for the submission to, and operation on the Sublicensed Platform; (ii) comply with all applicable Sublicensed Platform rules or requirements; and (iii) are compatible with the latest version of the Sublicensed Platform's operating and other software and continue to remain so during the Game License Term.

4.1.1. Review and Acceptance of Game(s)

The Publisher shall have the right, in its sole discretion, to review, accept, reject, suspend, remove, or require modifications to any Game submitted by the Licensor.

Submission of a Game by the Licensor shall not create any obligation on the Publisher to publish, distribute, market, or otherwise make such Game available on the Sublicensed Platform.

A Game shall be deemed accepted only upon express confirmation by the Publisher or upon publication of such Game on the Sublicensed Platform.

The Publisher may reject any Game for any reason, including technical, operational, legal, compliance, reputational, commercial, quality-control, or Sublicensed platform-related considerations, and shall have no obligation to provide the reasons for such decision.

4.2. Compliance with laws

The Licensor warrants and confirms that it complies with the requirements of all applicable laws, rules, regulations, and orders of any governmental authority in relation to the Game(s), any part thereof (including, but not limited to, in-game assets), and all other elements related to the contractual relationship with the Publisher.

4.3. Available statistics

The Publisher shall provide statistics and reporting data as made available by the Sublicensed Platform. The Publisher does not warrant the accuracy, completeness or correctness of any information generated or reported by the Sublicensed Platform and shall not be liable for any inaccuracies contained therein, provided that the Publisher does not knowingly alter or manipulate such information.

5. REVENUE SHARE AND PAYMENTS

5.1. Revenue Share

The Publisher shall pay to the Licensor 80% of the Net Revenue received by the Publisher from the Sublicensed Platform in connection with the Game(s).

5.2. Reporting and Payments

The Publisher shall calculate the Licensor's revenue share solely on the basis of reports, statements, revenue calculations and payment information received from the Sublicensed Platform, which shall be final and binding for the purposes of determining the amounts due under this Agreement.

The Publisher shall have no obligation to calculate, accrue or pay any revenue share unless and until the relevant amounts have been actually received by the Publisher from the Sublicensed Platform.

5.3. Accrual of Revenue Share

Subject to actual receipt of the relevant amounts by the Publisher from the Sublicensed Platform, the revenue share amounts due to the Licensor shall be credited to the Licensor's personal account in MC Pay within sixty (60) days following the end of the relevant reporting month.

5.4. Currency

All amounts under this Agreement shall be calculated and accounted for in United States Dollars (USD).

The currency of this Agreement is United States Dollars (USD).

5.5. Settlement Procedure

The Publisher shall credit the accrued revenue share amounts to the Licensor's personal account in MC Pay.

For the purposes of receiving and managing the revenue share, the Licensor shall register with MC Pay and create a personal account. After registration, the Licensor shall have access, through the personal account and profile balance functionality, to track accrued and available revenue share amounts.

Payment of the revenue share to the Licensor shall be made within ten (10) banking days after the Licensor initiates a withdrawal by clicking the "Withdraw" button in the Licensor's personal account in MC Pay.

5.6. Fees, Charges and Taxes

All expenses related to the transfer of funds, including bank fees, transfer fees, currency conversion costs, commissions of electronic payment systems, as well as any fees, charges or expenses incurred by Publisher or MC Pay in connection with processing the payment, shall be deducted from the Licensor's remuneration.

All taxes applicable to the Licensor under the laws of the Licensor's country of registration or residence shall be borne and paid by the Licensor independently.

6. WARRANTIES AND LIABILITY

6.1. Warranties and Covenants of the Licensor

The Licensor represents, warrants, and covenants that:

- the Licensor owns, controls, develops, or has obtained all necessary rights, licenses, permissions and authorizations required to grant the rights and licenses granted under this Agreement and to perform its obligations hereunder;
- the Game(s) do not and shall not infringe or otherwise violate any third-party intellectual property rights, including without limitation, patent, trade secret, copyright, trademark, trade dress, utility model, industrial design, mask work or moral rights.
- the Game(s) and no part thereof are copied, wholly or substantially, from any unauthorized third-party source, and do not and shall not contain any illegal, defamatory, racist, offensive, inappropriate or hidden content;
- it conducts its business in compliance with all applicable laws, rules and regulations, including without limitation applicable Personal Data protection laws.
- the Game(s) will not be: (i) misleading or deceptive; (ii) obscene, defamatory or otherwise unlawful; (iii) violent, sexual or abusive in nature so as to be reasonably likely to cause offence to any material group of people.

- the Game(s) shall comply with all applicable policies, guidelines, and requirements of the Sublicensed Platform (including without limitation regarding appropriate content, app submission, consumer protection, advertising/marketing and/or data privacy).
- the availability of, and support for the Game(s) will be at all times of a high quality, and will meet the specifications and service level criteria of the Publisher.
- it is not subject to any sanctions imposed by the United Nations, United States, European Union, or United Kingdom, is not owned or controlled by any sanctioned person or entity, and is not identified on any sanctions lists. The Licensor further warrants that it will comply with all applicable export control and sanctions laws and regulations, including those of the United States, and the European Union, in connection with the performance of this Agreement. The Licensor shall not take any action that would cause the Publisher to be in violation of such laws.

6.2. The Publisher represents, warrants and covenants that:

- the making and performance of its obligations under this Agreement does not and will not violate any separate agreement, right or obligation existing between Publisher and any third party; and
- it conducts its business in compliance with all applicable laws, rules and regulations, including without limitation applicable Personal Data protection laws.
- it is not subject to any sanctions imposed by the United Nations, United States, European Union, or United Kingdom, is not owned or controlled by any sanctioned person or entity, and is not identified on any sanctions lists.

6.3. Notice

The Publisher and the Licensor shall promptly notify each other of any actions brought or claims asserted against it whose outcome may affect the rights granted pursuant to this Agreement.

6.4. Indemnification

The Licensor agrees, on demand, to indemnify and hold harmless the Publisher, its Affiliates, and their respective officers, directors, employees and agents from and against any and all claims, demands, actions, suits, fines, penalties, losses, damages, liabilities, costs and expenses (including reasonable attorneys' fees) arising out of or in connection with: (a) any claim by developers and/or any other third party opposing or challenging the exploitation by the Publisher of any assets used in the Game and/or any intellectual property rights related thereto; and (b) any material breach by the Licensor of its obligations, representations or warranties under this Agreement.

6.5. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE PARTIES' TOTAL AGGREGATE LIABILITY IN CONNECTION WITH AN ATTRIBUTABLE FAILURE TO FULFILL ANY OBLIGATIONS UNDER THIS AGREEMENT, A WRONGFUL ACT AND/OR ANY OTHER LEGAL GROUNDS, FOR ANY KIND OF DAMAGE OR LOSSES INCLUDING CLAIMS OF THIRD PARTIES, INCLUDING DATA SUBJECTS, AND REGULATORY AUTHORITIES, SHALL NOT EXCEED USD 5,000 (FIVE THOUSAND US DOLLARS).

The limitation of liability set forth in this Clause shall not apply to:

- (a) fraud, wilful misconduct or gross negligence;
- (b) breach of confidentiality obligations;
- (c) indemnification obligations;
- (d) infringement of intellectual property rights.

6.6. Indirect Damages

Neither Party will be liable for any lost profits, or any form of special, incidental, indirect, consequential or punitive damages arising out of or related to this Agreement.

7. CONFIDENTIALITY

7.1. Confidential information of the Parties

7.1.1. Confidential Information of the Publisher

Without limitation, Confidential Information of the Publisher includes:

- business, commercial, and financial information of the Publisher;
- revenue data, payment information, payout schedules, calculations, reports, dashboards, statistics, and analytics (including data derived from the Sublicensed Platform);
- the terms of this Agreement and any related commercial arrangements;
- information relating to the Publisher's relationships with third-party platforms, including the Sublicensed Platform;
- technical information, internal processes, workflows, methodologies, know-how, and operational practices of the Publisher;
- non-public information regarding the Publisher's platform, tools, interfaces, APIs, systems, and infrastructure;
- any non-public communications, instructions, guidelines, or policies provided by the Publisher.

Confidential Information shall be deemed confidential whether or not it is marked or designated as confidential.

7.1.2. Confidential Information of the Licensor

Without limitation, Confidential Information of the Licensor includes:

- source code, object code, builds, prototypes, documentation, and technical materials relating to the Games;
- game mechanics, algorithms, designs, roadmaps, development plans, and unpublished features;
- business, commercial, financial, and strategic information of the Licensor;
- unpublished marketing plans, pricing models, monetization strategies, and user acquisition data;
- non-public information relating to the Licensor's relationships with developers, publishers, distributors, or other partners;
- any non-public communications, instructions, or materials provided by the Licensor in connection with the Games.

Confidential Information shall be deemed confidential whether or not it is marked or designated as confidential.

7.2. Permitted Disclosure

Each Party may disclose the other Party's Confidential Information solely to the extent necessary for the performance of its obligations under this Agreement and strictly in accordance with this Article 7.

7.3. Confidentiality obligations

Each Party shall:

- a) disclose the other Party's Confidential Information only to those of its Affiliates, employees, officers, or agents who have a strict need to know such information for the purposes of performing this Agreement, provided that such persons are bound by confidentiality obligations no less protective than those set forth herein;
- b) protect the other Party's Confidential Information with the same degree of care it uses to protect its own confidential information, but in no event less than a reasonable degree of care;
- c) upon termination or expiration of this Agreement, promptly return or, at the disclosing Party's request, destroy all Confidential Information of the other Party in its possession or control, except for any Confidential Information reasonably required to exercise rights that expressly survive termination.

7.4. Exclusions

The obligations under this Article 7 shall not apply to information that the receiving Party can demonstrate:

- a) is or becomes publicly available without breach of this Agreement or any confidentiality obligation;
- b) is lawfully received from a third party without breach of a confidentiality obligation;
- c) was lawfully known to the receiving Party prior to disclosure by the disclosing Party;
- d) was independently developed by the receiving Party without use of or reference to the Confidential Information of the disclosing Party.

7.5. Request for Disclosure

In the event any Party receives a request to disclose any Confidential Information under the terms of a valid and effective subpoena or order issued by a court of competent jurisdiction or a governmental body, such Party shall (i) immediately notify the Party that furnished such Confidential Information of the existence, terms and circumstances surrounding such request, (ii) consult with such Party on the advisability of taking legally available steps to resist or narrow such request, and (iii) exercise reasonable best efforts, at the expense of the Party producing such Confidential Information, to obtain an order or other reliable assurance that confidential treatment will be accorded to such portion of the Confidential Information as may be disclosed.

7.6. The confidentiality obligations set forth in this Section 7 shall apply during the term of this Agreement and shall survive its termination or expiration for a period of five (5) years.

8. TERM, TERMINATION

8.1. Term of this Agreement

This Agreement shall commence on the Effective Date and shall remain in force for an indefinite period.

8.2. Game License Term (Per-Game Basis)

The license granted under this Agreement in respect of each individual Game shall commence upon acceptance of such Game by the Publisher (the “Initial Acceptance Date”) and shall remain in force for a fixed period of twelve (12) months from such date (the “Initial Game License Term”).

Unless terminated in accordance with Clause 8.3., each Game License Term shall automatically renew for successive additional twelve (12) month periods (each a “Renewal Term”).

The Initial Game License Term together with any Renewal Term(s) shall be referred to in this Agreement as the “Game License Term”.

Each Game License Term shall apply independently to each Game and shall not be affected by the status of any other Game. For the avoidance of doubt, termination of this Agreement pursuant to Clause 8.5 shall terminate all Game License Terms in accordance with Clause 8.5.

8.3. Renewal and Non-Renewal of Games

Either Party may elect not to renew a Game License Term by providing at least sixty (60) days’ prior written notice before the expiry of the then-current Game License Term.

If no such notice is provided within the applicable notice period, the Game License Term shall automatically renew for an additional twelve (12) months.

8.4. Withdrawal of Games by Licensor

The Licensor shall not be entitled to withdraw, revoke, or request removal of any Game during the Initial Game License Term.

Following expiry of the Initial Game License Term, the Licensor may request withdrawal or removal of a Game only by providing not less than sixty (60) days’ prior written notice, specifying the name of the relevant Game.

Any such withdrawal or removal shall become effective upon expiry of the applicable sixty (60) day notice period, unless otherwise agreed in writing by the Publisher.

For the avoidance of doubt, the relevant Game may remain available on the Sublicensed Platform during the notice period and, where reasonably required for technical, operational, or platform-related reasons, for a wind-down period not exceeding thirty (30) days following expiry of such notice period.

Such wind-down period shall be strictly limited to the minimum time necessary for cessation of availability of the Game on the Sublicensed Platform and shall not extend beyond thirty (30) days under any circumstances.

8.5. Termination for Cause

Either Party may terminate this Agreement with immediate effect by written notice if the other Party is in material breach and fails to remedy such breach within ten (10) days following receipt of written notice specifying such breach.

Upon termination of this Agreement under this Clause 8.5:

- (a) all licenses granted under this Agreement, including all Game License Terms, shall immediately terminate and cease to have effect;
- (b) the Publisher shall cease exploitation, distribution, and making available of the Games on the Sublicensed Platform, using commercially reasonable efforts to implement such cessation as soon as technically and operationally feasible; and
- (c) each Party shall remain entitled to any accrued rights and payment obligations arising prior to the effective date of termination, including accrued but unpaid Net Revenue.

8.5A. Termination for Convenience

The Publisher may terminate this Agreement at any time for convenience upon fifteen (15) days' prior written notice to the Licensor.

The Licensor may terminate this Agreement for convenience upon sixty (60) days' prior written notice to the Publisher.

Any termination of this Agreement pursuant to this Clause shall not affect:

- (a) any Game License Term already in force at the effective date of termination;
- (b) any accrued rights, obligations, payment obligations or liabilities of either Party existing as of the effective date of termination.

For the avoidance of doubt, upon termination of this Agreement pursuant to Clause 8.5A, any then-current Game License Term shall continue until its scheduled expiration but shall not automatically renew thereafter.

8.6. Survival

The provisions of this Agreement which by their nature are intended to survive termination shall remain in force, including Articles 6 (Warranties and Liability) and 7 (Confidentiality), as well as any accrued payment obligations.

9. MISCELLANEOUS

9.1. Entire Agreement

This Agreement sets forth the entire agreement and understanding between the Parties hereto with respect to the subject matter hereof and, except as specifically provided herein, supersedes and merges all prior oral and written agreements, discussions and understandings between the Parties with respect to the subject matter hereof, and neither of the Parties shall be bound by any conditions, inducements or representations other than as expressly provided for herein.

9.2. Independent Contractors

In performing this Agreement, the Licensor and the Publisher act and shall act at all times as independent contractors and nothing contained in this Agreement shall be construed or implied to create an agency, partnership or employer and employee relationship between the Licensor and the Publisher.

9.3. Amendments, Modifications

The Publisher reserves the right to amend this Agreement unilaterally by publishing an updated version on the Platform and/or notifying the Licensor electronically.

Unless stated otherwise, amendments shall become effective upon expiration of seven (7) days from the date they are made available.

If the Licensor does not object in writing within such period, the Licensor shall be deemed to have accepted the amended Agreement in full.

If the Licensor objects to the amended Agreement, the Licensor may terminate this Agreement with immediate effect by written notice to the Publisher prior to the effective date of the amendments. Such termination shall not affect any Game License Term already in force, which shall continue in accordance with Article 8, unless otherwise agreed by the Parties in writing.

Notwithstanding the foregoing, Clause 5.1 (Revenue Share) may not be amended unilaterally and requires the express written agreement of both Parties.

9.4. Assignment

The Licensor shall not assign its rights or obligations under this Agreement to any third party without the Publisher's prior written approval, which shall be not unreasonably withheld.

9.5. Severability

The provisions of this Agreement shall be severable, and if any of them are held invalid or unenforceable for any reason, such provision shall be adjusted to the minimum extent necessary to cure such invalidity. The invalidity or unenforceability of one or more of the provisions contained herein shall not affect any other provisions of this Agreement.

9.6. Precedence of Agreement

In the event of any conflict or inconsistency between the terms of this Agreement and any terms, conditions, policies, or notices published on the Publisher's website or platform, the terms of this Agreement shall prevail and govern. The Parties acknowledge and agree that this Agreement constitutes the definitive and binding understanding between the Parties, superseding any conflicting provisions that may appear on the Publisher's website or platform.

9.7 Governing Law

This Agreement shall be governed by and interpreted in accordance with the laws of the Republic of Cyprus, without regard to conflicts of laws principles.

9.8. Competent Forum

Any dispute, difference, controversy or claim arising out of or in connection with this Agreement, including (but not limited to) any question regarding its existence, validity, interpretation, performance, discharge, applicable remedies and transactions contemplated hereby, shall be subject to the exclusive jurisdiction of the courts of Cyprus at the Publisher's registered location.

9.9. Notices

Any notice, request, demand, consent, approval, objection, termination notice or other communication under this Agreement shall be made in writing and may be delivered by electronic means, including but not limited to email, instant messaging services (including WhatsApp, Telegram and similar services), or any other electronic communication channel designated or used by the Parties in connection with this Agreement. Any such communication shall be deemed received upon transmission.

PUBLISHER

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